

24LBCV02146 24LBCV02146

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-25

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Case Number: 24LBCV02146 Hearing Date: August 25, 2026 Dept: S27

Background Facts

Plaintiff, Kee Yam filed this action against Defendant, American Honda Motor Co., Inc. for violations of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement – concealment.

Prior Hearing on Motion to Enforce Settlement

On 5/21/26, the parties appeared for a jury trial. Plaintiff represented to the Court that the case had settled, and Defendant indicated the case had not settled. The Court specially set a hearing on a motion to enforce settlement for 7/07/26. The Court ordered Plaintiff to file an opening brief by 6/10/26, with opposition and reply to be filed per Code.

Plaintiff failed to file an opening brief, and the Court took the motion off calendar.

Current Motion to Enforce Settlement

i.

Procedure

On 7/08/26, Plaintiff filed this motion to enforce settlement. Plaintiff

set the motion for hearing on 1/12/27.

The Court, via ex parte application, rescheduled the motion for hearing on 8/25/26.

ii.

Parties' Positions

Plaintiff, in the opening brief, contends he accepted a settlement pursuant to which he would retain his vehicle, Defendant would pay him \$10,000, and he would be entitled to his fees and costs. Plaintiff contends Defendant is refusing to comply with the terms of the settlement, and seeks an order enforcing the settlement per CCP §664.6.

Defendant filed timely opposition papers on 8/12/26. Defendant contends the motion must be denied because (a) after Defendant made the offer that forms the basis of this motion, Plaintiff made a counter-offer, which Defendant rejected, and (b) the emails at issue are not a "signed settlement agreement" for purposes of §664.6.

Any reply to the opposition was due on or before 8/18/26. Plaintiff has not filed timely reply papers, and the Court will not consider late-filed reply papers.

iii.

Analysis

Pursuant to *Flintco Pac., Inc. v. TEC Mgmt. Consultants, Inc.* (2016) 1 Cal.App.5th 727, 736, a counter-offer acts as a rejection of the original offer and therefore terminates the original offer. Defendant concedes that it made the settlement offer Plaintiff seeks to enforce, but provides evidence that, thereafter (on 5/20/26 via email), Plaintiff made a counter-offer seeking to settle for either a re-opening of a prior expired \$998 offer or \$20,000 plus fees and costs.

This counter-offer operated, by law, to repudiate the original offer, and therefore Plaintiff's purported acceptance of the offer, several hours later, had no legal effect.

The motion to enforce the purported settlement is denied.

The parties are reminded that there is a Trial Setting Conference on calendar concurrently with the hearing on the above motion. The Court asks the parties to make arrangements to appear remotely at the hearing on the motion and the TSC.